

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2023CUCR009593: JOHN ROE 1 A MINOR BY AND THROUGH GUARDIAN AD
LITEM JANE ROE, et al. vs PLEASANT VALLEY SCHOOL DISTRICT, et al.
08/25/2026 in Department 41
Motion for Relief from Waiver of Objections to Defendant's Special Interrogatories**

DENY

(Code Civ. Proc., §§ 2030.290, subd. (a), 2031.300, subd. (a).)

On December 4, 2025, Defendant filed a Motion to Compel Responses to Special Rogs (set one) and a Motion to Compel Responses to RFPs (set one). On November 18, 2025, Plaintiff's counsel served supplemental medical records for John Roes 1 and 2 but failed to provide any responses to the outstanding discovery. The opposition to the motions stated that responses to the discovery were served post-motion, on December 31, 2025. On January 14, 2026, the Court denied the discovery motions as moot, on the grounds that responses had been served.

On February 6, 2026, Defendant filed a Motion to Compel Further Responses to Special Rogs (set one) and Motion to Compel Further Responses to RFPs (set one). Oppositions and replies were filed. On May 4, 2026, the Court continued the hearings for both motions to June 16, 2026, to allow Plaintiff time to file a motion for relief from waiver of objections as to both sets of discovery requests.

On May 27, 2026, Plaintiff the instant Motion for Relief from Waiver of Objections to Defendant's Special Interrogatories, Set One, and Requests for Production of Documents, Set One. The motion was originally set for July 14, 2026, but was rescheduled to August 25, 2026, by the Court. The discovery motions were also rescheduled to the same date.

A jury trial (7-day estimate) is now set for June 21, 2027. A pretrial conference is set for 6/7/27.

Defendant Pleasant Valley School District ("Defendant") moves the Court for an order granting relief from the waiver of objections, including objections based on attorney-client privilege and the attorney work product doctrine, to Defendant's Special Interrogatories, Set One, and Requests for Production of Documents, Set One. (Code Civ. Proc., §§ 2030.290, subd. (a)(1)-(2), 2031.300, subd. (a)(1)-(2).) Relief is also sought in the alternative pursuant to Code of Civil Procedure section 473, subdivision (b).

The discovery requests at issue were served on June 4, 2025. Plaintiff obtained an extension of time to respond through July 24, 2025. Plaintiff did not serve responses by that deadline.

Plaintiff states that its law firm Haney & Shah LLP is a small firm that typically employs only four practicing attorneys at any given time. In 2025, the firm experienced unprecedented turnover, with four attorneys departing over the course of the year. At one point in April 2025, partner Steven H. Haney was effectively the only practicing attorney at the firm. (Jennings Decl., ¶ 2; Haney Decl., ¶ 2.)

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During this same period, Mr. Haney — then age 67 — was suffering from a serious medical condition that caused dizziness, loss of balance, blackouts, and memory loss. (Haney Decl., ¶¶ 3-5.) Because of his medical condition, Mr. Haney delegated the coordination and completion of the discovery responses in this case to an associate, who was admitted to practice in California in 2022 and was hired as an associate in March 2025. The combination of Mr. Haney’s health, the firm’s difficulty in retaining qualified attorneys, and the volume of Defendant’s discovery (196 interrogatories and 63 RFPs to Jane Roe alone, with parallel discovery propounded on the two minor Plaintiffs) caused the firm to rely heavily on the relatively new associate. He encountered workload and experience-related challenges that contributed to delays. (Jennings Decl., ¶ 3; Haney Decl., ¶ 5.) On November 3, 2025, without notice, the associate abruptly resigned, citing work-related stress. (Jennings Decl., ¶ 4; Haney Decl., ¶ 6.)

Plaintiff states that after the associate’s departure, the firm discovered that Plaintiff Jane Roe had never been provided with copies of Defendant’s discovery requests and had not been involved in the preparation of any responses. (Jennings Decl., ¶ 5; Haney Decl., ¶¶ 6-7.) Because of the volume of the requests and Plaintiff’s commitment to providing complete and accurate responses, preparation required more time than initially anticipated. (Jennings Decl., ¶ 6.) On December 31, 2025, Plaintiff served verified responses to Defendant’s Special Interrogatories, Set One, and verified responses to Defendant’s Requests for Production of Documents, Set One. The responses substantively addressed most of Defendant’s requests. (Jennings Decl., ¶ 7; Haney Decl., ¶ 7.) On February 23, 2026, Plaintiff served additional Bates-numbered documents on Defendant. (Jennings Decl., ¶ 8.)

Under Code of Civil Procedure sections 2030.290(a) and 2031.300(a), a party who fails to serve a timely response to interrogatories or requests for production waives all objections, “Including one based on privilege or on the protection for work product.” (Code Civ. Proc., §§ 2030.290, subd. (a), 2031.300, subd. (a).) However, the Court “may relieve that party from this waiver” upon a showing that (1) the party has subsequently served a response that is in substantial compliance with the form-of-response statutes, and (2) the party’s failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., §§ 2030.290, subd. (a)(1)-(2), 2031.300, subd. (a)(1)-(2).)

Plaintiff contends that she meets the criteria for relief from waiver of her objections. The first statutory prong is satisfied because Plaintiff has served verified responses to all 196 Special Interrogatories and all 63 Requests for Production of Documents. Those responses are signed and verified under oath. They contain substantive answers to Defendant’s requests, supplemented as necessary by the production of Bates-numbered documents on February 23, 2026.

Plaintiff argues that the second statutory prong is also satisfied based on the “extraordinary circumstances” at the law firm in 2025 which establish a clear case for excusable neglect. Again, lead counsel Steven H. Haney suffered from a serious neurological condition. Second, the firm experienced an unprecedented exodus of attorneys in 2025 — four departures from a firm that typically has only four practicing attorneys to begin with. Third, the associate to whom Mr. Haney delegated the discovery was inexperienced in civil litigation, became overwhelmed, and on November 3, 2025, abruptly resigned without notice, citing work-related stress. Critically, it

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was only after the associate resigned that the firm discovered Plaintiff Jane Roe herself had never been provided with copies of Defendant's discovery requests and had not been involved in the preparation of any responses. Plaintiff's firm acted as soon as the lapse was discovered.

In the alternative, the Court may grant relief under Code of Civil Procedure section 473(b). (*Zellerino v. Brown* (1991) 235 Cal.App.3d 1097, 1107.) The same facts that establish mistake, inadvertence, and excusable neglect under sections 2030.290(a) and 2031.300(a) establish those grounds under section 473(b). The concurrently filed declarations of Mr. Haney and Mr. Jennings provide the requisite attorney-fault attestations.

Opposition:

Defendant argues that the motion should be denied because Plaintiff has not demonstrated that the requirements of section 2030.290, subdivision (a) and section 2031.300, subdivision (a) are satisfied here. Defendant reiterates that Plaintiff Jane Roe failed to serve any responses whatsoever to Defendant's Special Interrogatories, Set One, and Requests for Production, Set One for more than five months after responses were due, despite obtaining an extension, receiving repeated meet-and-confer communications, and being expressly advised on multiple occasions that objections had been waived by operation of law. Plaintiff ultimately served responses only after Defendant was forced to file motions to compel. Even now, despite multiple continuances on the motions to compel further responses, the responses remain replete with boilerplate objections, nonresponsive narrative answers, blanket references to pleadings and document productions, entire blocks of responses left completely blank, and other deficiencies that continue to prevent Defendant from obtaining the basic factual information necessary to prepare its defense in this, and the related, cases.

Defendant argues that Plaintiff fails to show that the subsequently served responses are in substantial compliance with the Discovery Act. The supplemental responses served to date remain materially deficient and fail to provide complete and straightforward answers to large categories of interrogatories and document requests. Entire numerical blocks of interrogatories still contain little or no substantive factual information, and Plaintiff continues to withhold responsive information regarding witnesses, communications, damages, healthcare providers, insurance, and other central issues in the case. Plaintiff's attempt to excuse this conduct through generalized references to staffing turnover and law-office management issues likewise fails. Internal staffing problems do not explain why discovery due in July 2025 has remained unanswered for almost an entire year, why repeated meet-and-confer efforts were ignored, why objections continued to be asserted after they had been waived, or why Plaintiff still has not provided substantially compliant responses despite multiple rounds of supplementation and motion practice.

Plaintiff's own motion establishes that Mr. Haney was the sole practicing attorney in the firm in April 2025. Yet the discovery at issue was not even propounded until June 2025. Thus, Plaintiff's explanation does not account for the failure to timely respond to discovery that was served months later. Likewise, Plaintiff asserts that the associate attorney assigned to discovery

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unexpectedly left the firm in November 2025. Even accepting that assertion is true, it does not explain why:

- Discovery due on July 24, 2025, remained unanswered for months beforehand;
- Plaintiff ignored repeated meet-and-confer efforts between July and November;
- No responses whatsoever could be served before the associate's departure;
- Plaintiff still required nearly two additional months to serve responses after the departure; or
- Plaintiff continued asserting waived objections even after finally serving responses.

This is not a situation involving a brief calendaring error, an isolated oversight, or a short delay promptly corrected upon notice. Rather, the record reflects a sustained pattern of discovery noncompliance and gamesmanship. Plaintiff has repeatedly ignored discovery deadlines, repeatedly served supplemental responses only after Defendant incurred the expense of filing multiple motions to compel, and repeatedly argued that the resulting motions were somehow rendered moot despite the continued existence of substantial deficiencies.

Further, Plaintiff seeks relief from waivers without ever identifying what objections require protection. Plaintiff does not identify the specific privilege at issue or explain how any particular discovery request implicates that privilege.

Defendant asserts that the prejudice to Defendant is substantial. Depositions have been delayed, hearings have been repeatedly continued, coordinated discovery across the related actions has been disrupted, and Defendant has been forced to incur significant fees and costs merely attempting to obtain information that should have been disclosed long ago. Under these circumstances, equitable relief is unwarranted. Plaintiff has failed to establish excusable neglect, failed to demonstrate substantial compliance with the Discovery Act, and failed even to identify the specific discovery requests that purportedly require protection. The Motion should therefore be denied in its entirety.

There is no reply as of 8/24/26.

Under Code of Civil Procedure sections 2030.290(a) and 2031.300(a), a party who fails to serve a timely response to interrogatories or inspection demands waives any objection to those interrogatories and demands, including those based on privilege or work-product protection. The trial court may relieve the responding party from this waiver only if the moving party establishes two mandatory statutory prerequisites: (1) the party has subsequently served a response that is in substantial compliance with the applicable statutory requirements, and (2) the party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (CCP §§ 2030.290(a)(1)–(2), 2031.300(a)(1)–(2).) The moving party bears the burden of producing competent evidence to satisfy both prongs of this standard. □

The Civil Discovery Act does not provide a definition of “substantial compliance” applicable to the context of motions for relief from waiver of objections to the various discovery methods, including interrogatories. (See *St. Mary v. Superior Court* (2014) 223 Cal. App. 4th 762, 769.) As a general matter, however, “[s]ubstantial compliance ... means actual compliance in respect

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to the substance essential to every reasonable objective of the statute.” (*Stasher v. Harger-Haldeman* (1962) 58 Cal. 2d 23, 29; see also *Freeman v. Vista de Santa Barbara Associates LP* (2012) 207 Cal. App. 4th 791, 793 (“Substantial compliance with a statute is dependent on the meaning and purpose of the statute.”).)

The motion contends that this prong is met because Plaintiff has served verified responses to all 196 Special Rogs and all 63 RFPs. However, the motion fails to attach a copy of the relevant discovery responses and fails to actually demonstrate that the responses were in substantial compliance. Without being able to review the actual text of the responses, the Court cannot verify if they comply with the formatting and content mandates of CCP §§ 2030.210–2030.240 (for interrogatories) or CCP §§ 2031.210–2031.240 (for requests for production). Because the moving party has not provided the necessary factual record for the Court to make a determination, I submit that the motion fails to satisfy the first statutory prong under sections 2030.290(a) and 2031.300(a).

The party seeking relief from the waiver of objections must also show that the failure to serve a timely response to the interrogatories was the result of mistake, inadvertence, or excusable neglect. (CCP §§ 2030.290(a)(2), 2031.300(a)(2).) The same standard for relief from defaults that is applied under CCP § 473 applies here. (See *City of Fresno v. Superior Court* (1988) 205 Cal.App.3d 1459, 1467 (“[t]he Legislature apparently intended to employ the same standard for relief from defaults as used in section 473 for failure to serve a timely response to a discovery demand”).)

A party seeking discretionary relief on the grounds of attorney error must demonstrate that the error was excusable, since the attorney's negligence is imputed to the client. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 258.) “Excusable neglect is that neglect which might have been the act of a reasonably prudent person under the same circumstances.” (*Alderman v. Jacobs* (1954) 128 Cal.App.2d 273, 276.) A threshold requirement for relief is the moving party's diligence. (*Zamora, supra*, 28 Cal.4th at p. 1420.)

“Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is not therefore excusable. To hold otherwise would be to eliminate the express statutory requirement of excusability and effectively eviscerate the concept of attorney malpractice.” (*Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 682.)

Here, the discovery was served on June 4, 2025. Plaintiff states that due to Haney's serious medical condition, he assigned the discovery responses to an associate at the time the discovery was served. Thus, although Plaintiff appears to rely partially on Haney's illness as an excuse for the late responses, his illness did not impact the failure to serve timely responses, because a different attorney was tasked with preparing the responses to the discovery. The focus on Haney's illness appears to be somewhat of a red herring.

The responses were due in early July 2025, but Defendant's counsel granted an extension of time to answer to July 24, 2025. The associate attorney did not serve responses by July 24, 2025. Thereafter, Defendant's counsel sent meet and confer letters between July 31, 2025, through November 10, 2025, putting opposing counsel on notice of the unanswered discovery. It appears

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that the associate did not respond. The foregoing conduct appears to demonstrate a lack of diligence on the part of the attorney and neglect, but not excusable neglect. A reasonably prudent person in the attorney's position in similar circumstances would have responded to the meet and confer letters and/or sought a further extension of time to respond. (See (*Mannino v. Superior Court* (1983) 142 Cal.App.3d 776, 779 [showing of excusable neglect after counsel has knowingly allowed the time to respond to discovery to expire must include not only a reasonable excuse for the delay but also a reasonable explanation for the failure to seek a further extension from counsel or an enlargement of time from the court].) There is no showing as to why the associate attorney reasonably did not do either.

It appears that Plaintiff seeks to excuse the associate's failure to respond to the discovery and to the meet and confer letters on the grounds that the associate attorney had "workload and experience-related challenges." However, the pressure of an attorney's practice or legal business is generally insufficient grounds to grant equitable relief. (*City of Fresno, supra*, 205 Cal.App.3d at p. 1467; *Lyons v. Swope* (1957) 154 Cal.App.2d 598, 600.) That an attorney did not calendar a summary judgment motion "because [counsel] was overwhelmed and disorganized," was held not to be excusable neglect. (*Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1423-1424.) To constitute grounds for relief, an exceptional workload generally must be accompanied by some factor outside the attorney's control that makes the situation unmanageable, such as a mistake "caused by a glitch in office machinery or an error by clerical staff." (*Ambrose v. Michelin North America, Inc.* (2005) 134 Cal.App.4th 1350, 1354-1355.)

Plaintiff also states that the associate attorney abruptly resigned on November 3, 2025, without notice. But again, the failure to serve responses occurred as of July 24, 2025, and hence the associate's sudden departure in November 2025 cannot be used to excuse the failure to respond on July 24, 2025.

To the extent that Plaintiff's counsel's declaration appears to take the blame for the failure to respond and seek alternative, mandatory relief under CCP § 473(b), mandatory relief under that section is not available. This is because when a specific discovery statute provides its own mechanism for relief from a waiver, that statute controls. (*Zellerino v. Brown* (1991) 235 Cal.App.3d 1097, 1107.) Here, CCP §§ 2030.290(a) and 2031.300(a) provide their own mechanism for relief from a waiver of objections. I note that mandatory relief under § 473(b) *is available* when *terminating sanctions* are granted, since the controlling statute did not have a mechanism for relief and terminating sanctions are like a default judgment or dismissal. (See *Rodriguez v. WNT* (2025) 116 Cal.App.5th 791 [a terminating sanction qualifies as a dismissal under section 473(b) only if the plaintiff failed to oppose the motion seeking dismissal]; *Rodriguez v. Brill* (2015) 234 Cal.App.4th 715 [CCP § 473(b) applies to discovery proceedings in the context of terminating sanctions imposed as a result of discovery abuses].) Based on foregoing, I submit that the Court should deny the motion for relief.